

Dr Sarah Gilmartin s.gilmartin@lancaster.ac.uk

Drop-in hours: [make an appointment](#)

Employers' Liability (or relationships akin to employment)

Non-Delegable Duties and
Vicarious Liability

Part 1/4

Week 17





**CONTENT
NOTICE
(Weeks 17 and
18)**

Aims of the Lectures (Employers' Liability)

By the end of the lectures in Weeks 17-18 you will:

- Appreciate that NDD and VL are not torts, but a means to establish a Defendant's liability;
- Understand NDD and VL's interactions with torts that you are already familiar;
- Understand the development of the laws in relation to NDD and VL;
- Understand and know when to consider the laws on NDD and VL;
- Know which elements to apply to determine a defendant's liability for breach of NDD or to hold them liable for the actions/omissions of a third party (VL).

Is it Personal (NDD) or Vicarious?

'A non-delegable duty of care is often described as a duty to ensure that reasonable care is taken and the idea is that [the employer] will breach it simply because [a third party/employee] fails to take such care...

A non-delegable duty of care is distinct from an ordinary duty of care [to take care such as is reasonable in all the circumstances of the case] because [an employer] can breach the former even if he has taken reasonable care...whereas to breach the latter he himself must fail to take reasonable care...

And liability arising under a non-delegable duty is distinct from vicarious liability because, in relation to the former type of liability, nothing in particular turns on the relationship between [employer] and [a third party/employee] whereas that is of central importance to the latter species of liability...'

Non-Delegable Duties 1/4

- *Priestly v Fowler* (1837) 150 ER 1030 - Common Employment
- **Law Reform (Personal Injuries) Act 1948, s 1(1)** - It shall not be a defence to an employer who is sued in respect of personal injuries caused by the negligence of a person employed by him, that that person was at the time the injuries were caused in common employment with the person injured.
- *Wilsons and Clyde Coal Co Ltd v English* [1938] A.C. 57: 'The obligation is fulfilled by the exercise of due care and skill. But it is not fulfilled by entrusting its fulfilment to employees, even though selected with due care and skill. The obligation is threefold - **"the provision of a competent staff..., adequate material, and a proper system and effective supervision"**'. Lord Wright at 78 citing Lord M'Laren in *Bett v Dalmaney Oil Co. Ltd* (1905) 7 F. 787, 790



Statutory Duties Giving Rise to Non-Delegable Duties

Health and Safety at Work etc Act 1974

(**S.2** for general duties of employers to their employees)

Manual Handling Operations Regulations 1992

Provision and Use of Work Equipment Regulations 1998

Management of Health and Safety at Work Regulations 1999

Work at Height Regulations 2005

Statutory instruments (Regulations) owned and enforced by HSE/Local Authorities

Key figures for Great Britain (2023/24)

- 1.7 million working people suffering from a work-related illness, of which
 - 776,000 workers suffering work-related stress, depression or anxiety
 - 543,000 workers suffering from a work-related musculoskeletal disorder
- 2,257 mesothelioma deaths due to past asbestos exposures (2022)
- 138 workers killed in work-related accidents
- 604,000 working people sustained an injury at work according to the Labour Force Survey
- 61,663 injuries to employees reported under RIDDOR
- 33.7 million working days lost due to work-related illness and workplace injury
- £21.6 billion estimated cost of injuries and ill health from current working conditions (2022/23)

<https://www.hse.gov.uk/statistics/overview.htm>



General Cleaning Contractors Ltd v Christmas [1953] AC 180

'Where a practice of ignoring an obvious danger has grown up I do not think that it is reasonable to expect an individual workman to take the initiative in devising and using precautions. It is the duty of the employer to consider the situation, to devise a suitable system, to instruct his men what they must do and to supply any implements that may be required'. per Lord Reid at 194

Non-Delegable Duties

2/4

Wilsons and Clyde Coal Co Ltd v English [1938] A.C. 57: 'What is the extent of the duty attaching to the employer? Such a duty is the employer's personal duty, whether he performs or can perform it himself, or whether he does not perform it or cannot perform it save by servants or agents. A failure to perform such a duty is the employer's personal negligence. This was held to be the case where the duty was statutory, and it is equally so when the duty is one attaching at common law.'

Lord Wright at 83-84

Cassidy v Ministry of Health [1951] 2 K.B. 343: 'I take it to be clear law, as well as good sense, that, where a person is himself under a duty to use care, he cannot get rid of his responsibility by delegating the performance of it to someone else, no matter whether the delegation be to a servant under a contract of service or to an independent contractor under a contract for services.'

Denning LJ at 363



Non-Delegable Duties: Independent Contractors

3/4

Woodland v Swimming Teachers Association [2013] UKSC 66

- Extension of Wilson to independent contractors and a case outside of employment
- School swimming lesson
- School contracted out to agency at Local Authority swimming pool
- Ten year old Claimant suffered head injury and hypoxic induced brain injuries
- *'Where a non-delegable duty arises, the defendant is liable not because he has control but in spite of the fact that he may have none. The essential element in my view is not control of the environment in which the claimant is injured, but control over the claimant for the purpose of performing a function for which the defendant has assumed responsibility.'* per Lord Sumption 583-4



Non-Delegable Duties: Independent Contractors Continued...

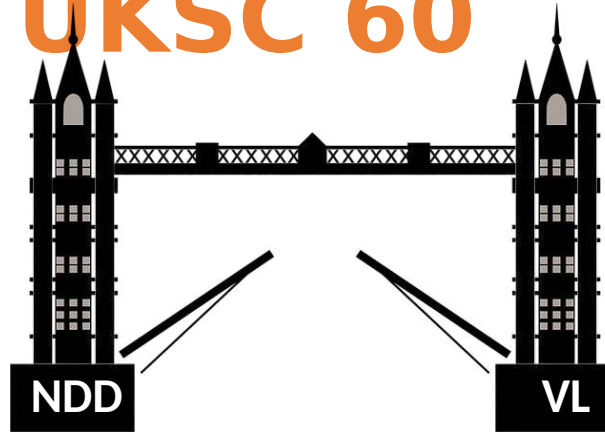
Defining features of non-delegable duty per Lord Sumption at 583:

- 1) The claimant is a patient or a child, or for some other reason is especially vulnerable or dependent on the protection of the defendant against the risk of injury...
- 2) There is an antecedent [i.e. prior] relationship between the claimant and the defendant, independent of the negligent act or omission itself
 - i. which places the claimant in the actual custody, charge or care of the defendant, and
 - ii. from which it is possible to impute to the defendant **the assumption of a positive duty** to protect the claimant from harm, and not just a duty to refrain from conduct which will foreseeably damage the claimant. It is characteristic of such relationships that they involve an element of control over the claimant, which varies in intensity from one situation to another, but is clearly very substantial in the case of schoolchildren.
- 3) The claimant has no control over how the defendant chooses to perform those obligations, i.e. whether personally or through employees or through third parties.
- 4) The defendant has delegated to a third party some function which is **an integral part of the positive duty** which he has assumed towards the claimant; and the third party is exercising, for the purpose of the function thus delegated to him, the defendant's custody or care of the claimant and the element of control that goes with it.
- 5) The third party has been negligent not in some collateral respect but in the performance of the very function assumed by the defendant and delegated by the defendant to him.

Non-Delegable Duties: Some Case Law 4/4

- *Latimer v AEC Ltd* [1953] AC 643 – inordinate amount of water on floor – negligence – breach – standard (cost of precautions) – there are limits on what an employer must do to fulfil their duty of care (on non-delegable duties)
- *Paris v Stepney BC* [1951] AC 367 – one eyed worker – negligence – breach – standard (magnitude of harm) – non-delegable duties have individual application
- *James-Bowen and others v Metropolitan Police Commissioner* [2018] UKSC 40 – Officers sued for assault – litigation conducted by Police Force – duty of care – incrementalism – relationship between police officers and force analogous to employment – duty does not extend to conduct of litigation – the imposition of such a duty would not be fair, just or reasonable.
- *Hudson v Ridge* [1957] 2 Q.B. 348 – employee known to engage in practical jokes – the *Wilson* obligations – provision of competent staff and safe place of work – D knew and had warned the employee – employer owed injured Claimant non-delegable duty.
- *W v Commissioner of Police for the Metropolis* [2000] 1 W.L.R. 1607 – bullying and harassment in the workplace – the *Wilson* obligations – provision of competent staff and safe place of work – police relationship analogous to employer/employee and non-delegable duty owed.

Armes v Nottinghamshire County Council [2017] UKSC 60



- The bridge between non-delegable duties and vicarious liability
- Compare with *Woodland v Swimming Teachers Association* [2013] UKSC 66
- Claimant foster child sexually and physically abused by foster carers appointed by Local Authority
- The Local Authority did not have a non-delegable duty of care – a policy decision?
- But the Local Authority were vicariously liable for the torts of the foster carers.

Additional Reading

(Weeks 17 and 18 & Workshop 9)

- ❑ Warren Swain, "A Historical Examination of Vicarious Liability: A Veritable Upas Tree" [2019] CLJ 640.
- ❑ Emily Gordon, 'Mohamud Explained and Re-Understanding "Close Connection" in Vicarious Liability' (2020) Vol 9(3) Cambridge Law Journal 401-404
- ❑ Stephen Tood, 'Personal liability, vicarious liability, non-delegable duties and protecting vulnerable people' (2016) Vol 23(2) Torts Law Journal 105-138
- ❑ Paula Gilliker, 'Analysing Institutional Liability for Child Sexual Abuse in England and Wales and Australia: Vicarious Liability, Non-Delegable Duties and Statutory Intervention' (2018) Vol 77(3) Cambridge Law Journal 506-535
- ❑ Simon Deakin, 'Organisational Torts: Vicarious Liability Versus Non-Delegable Duties' (2018) Vol 77(1) Cambridge Law Journal 15-18
- ❑ Christian Witting, 'Breach of the Non-delegable Duty: Defending Limited Strict Liability in Tort' (2006) Vol 29(3) University of New South Wales Law Journal 38-60
- ❑ J Murphy, 'The Liability Bases of Common Law Non-Delegable Duties – A Reply to Christian Witting' (2007) Vol 30(1) University of New South Wales Law Journal 86-102

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To be continued...

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